

Abhilasha Pandey vs Rahul Pandey on 14 November, 2024

Author: Saumitra Dayal Singh

Bench: Saumitra Dayal Singh

HIGH COURT OF JUDICATURE AT ALLAHABAD

?

Neutral Citation No. - 2024:AHC:178967-DB

Court No. - 39

Case :- FIRST APPEAL No. - 765 of 2017

Appellant :- Abhilasha Pandey

Respondent :- Rahul Pandey

Counsel for Appellant :- Kamal Kumar Singh

Counsel for Respondent :- Santosh Kumar Singh

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Donadi Ramesh, J.

1. List revised. None present for the respondent in either call.
2. Shri Kamal Kumar Singh, learned counsel for the appellant is present.
3. Present appeal has been filed under Section 19 of the Family Courts Act, 1984, arising from the judgement and order dated 29.09.2017 passed by learned Additional Principal Judge/F.T.C.-II, Mau, in Matrimonial Case No. 665 of 2012 (Rahul Pandey v. Abhilasha Pandey), whereby the

learned court below has declared the marriage between the parties to be void under Section 12 of the Hindu Marriage Act, 1955.

4. The present appeal was filed within time. It has remained pending for 7 years. In Smt. Lata Kamat Vs. Vilas; (1989) 2 SCC 613, the Supreme Court has observed as below :

"7. In order to understand the meaning of Section 15 of the Act it would be better if we first notice that the words "decree for divorce" or "decree for nullity" has not been defined in any one of the provisions of this Act. Section 12(1) of the Act reads:

"Any marriage solemnized, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds namely?"

Similarly Section 13(1) of the Act reads:

"(1) Any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or wife, be dissolved by a decree of divorce on the ground that the other party?"

It is no doubt true that these two sections have different phraseology. In Section 12 it is said that the marriage be annulled by a decree of nullity whereas in Section 13, the phraseology used is "dissolved by decree of divorce" but in substance the meaning of the two may be different under the circumstances and on the facts of each case but the legal meaning or the effect is that by intervention of the court the relationship between two spouses has been severed either in accordance with the provisions of Section 12 or in accordance with the provisions of Section 13. Probably it is because of this reason that the phrase "decree of nullity" and "decree of divorce" have not been defined. Section 28 of the Act reads:

"28. Appeal from decrees and orders.?(1) All decrees made by the court in any proceeding under this Act shall, subject to the provisions of sub-section (3), be applicable as decrees of the court made in exercise of its original civil jurisdiction, and every such appeal shall lie to the court to which appeals ordinarily lie from the decisions of the court given in the exercise of its original civil jurisdiction.

(2) Orders made by the court in any proceeding under this Act, under Section 25 or Section 26 shall, subject to the provisions of sub-section (3), be appealable if they are not interim orders, and every such appeal shall lie to the court to which appeals ordinarily lie from the decision of the court given in exercise of its original civil jurisdiction.

(3) There shall be no appeal under this section on the subject of costs only.

(4) Every appeal under this section shall be preferred within a period of thirty days from the date of the decree or order."

Under this provision all decrees made by the court in any proceeding under this Act are appealable. Apparently any proceeding under this Act will refer to a proceeding instituted under Section 13 or a proceeding instituted under Section 11 or 12 as Sections 11 and 12 talk of "decree for nullity" and Section 13 talks of "decree for divorce" but in order to provide an appeal against all decrees Section 28 has used a very wide terminology which include decrees under Sections 11, 12 and 13 and so far as this is concerned it could hardly be contested as the language of Section 28 itself is so clear. It is in this context that we analyse the language of Section 15. It reads:

"15. Divorced persons when may marry again.?When a marriage has been dissolved by a decree of divorce and either there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again."

Before we examine the phraseology "dissolved by decree of divorce" it would be worthwhile to examine the remaining part of this provision, especially "if there is such a right of appeal, the time for appealing has expired without an appeal having been presented or an appeal has been presented but has been dismissed". If we give narrow meaning to the term "dissolved by decree of divorce" as contended by the learned counsel for the respondent, it will mean that if it is a decree under Section 13 then either party to the proceeding will have to wait till the period of appeal has expired or if the appeal is filed within limitation till the appeal is disposed of and before that it will not be lawful for either party to the marriage to marry again. The phrase "either party to the marriage" if is co-related with the first part of the section, marriage which has been dissolved by decree of divorce will indicate that what was provided in this section was that when a relationship of marriage is dissolved by decree of court and either no appeal is filed or if filed, is dismissed then either party to the marriage which has been dissolved by the process of law by a decree are free to marry again. The only words on the basis of which the narrow meaning has been given to this section by some of the High Courts is on the basis of the words "decree of divorce". It could not be doubted that where the marriage is dissolved under Section 11, 12 or 13 by grant of a decree of nullity or divorce, the relationship is dissolved or in any way is brought to an end and it would be significant that if the language of Section 15 is interpreted in the light of Section 28 which provides for appeal and confers a right of appeal on either party to proceedings which culminate into a decree bringing an end to the relationship of marriage then we will have to infer that the legislature so far as decrees under Section 13 are concerned wanted the right of appeal to survive but in decrees under Section 11 or 12 the legislature wanted the right of appeal to be subject to the will of the other party. As it is apparent that if what is contended by the learned counsel for the respondent and held by some of the High Courts is accepted that Section 15 will not apply to cases when a decree is passed under Section 11 or 12 it will mean that as soon as a decree is passed the party aggrieved may appeal but the other party by remarriage would make the appeal infructuous and therefore the right of appeal of one of the parties to the decree under Section 28 will be subject to the act of the other party in cases where decree is passed under Section 11 or 12 but if it were so, the legislature would have provided a

separate provision for appeal when there is a decree under Section 13 and a different provision for appeal when there is a decree under Section 11 or 12 as the right of appeal against a decree under Section 11 or 12 could only be a limited right subject to the desire of the other party. The legislature in its wisdom has enacted Section 28 conferring a right of appeal which is unqualified, unrestrictive and not depending on the mercy or desire of a party against all decrees in any proceeding under this Act which will include a decree under Section 11, 12 or 13 and therefore the only interpretation which could be put on the language of Section 15 should be that which will be consistent with Section 28. This phrase "marriage has been dissolved by decree of divorce" will only mean where the relationship of marriage has been brought to an end by the process of court by a decree.

8. It is plain that the words "divorce" or "decree of divorce" have not been defined in this Act. The meaning of the word "divorce" indicated in Shorter Oxford English Dictionary reads:

"Divorce ? 1. Legal dissolution of marriage by a court or other competent body, or according to forms locally recognized. 2. Complete separation; disunion of things closely under ME. 3. That which cause divorce ?1607."

Similarly the meaning of the word "divorce" as indicated in Webster's Third New International Dictionary reads:

"Divorce ? 1 : a legal dissolution in whole or in part of a marriage relation by a court or other body having competent authority."

In Vathsala case [AIR 1969 Mad 405 : (1969) 1 MLJ 402] the court had occasion to consider the effect of an application for setting aside an ex parte decree which was granted under Section 12 and it was contended that while the application by the husband for setting aside the ex parte decree was pending the wife contracted remarriage. Will not remarriage have the effect of making the application to set aside ex parte decree infructuous? More or less a similar question is in the present case where it has been held that by marrying the second time the respondent made the appeal filed by the appellant infructuous, and the learned Judge placing reliance on the observations made in Chandra Mohini case [AIR 1967 SC 581 : (1967) 1 SCR 864] held:

"That is the principle of Chandra Mohini v. Avinash Prasad. The principle laid down in that decision has general application. The Supreme Court pointed out that on dissolution of marriage, a spouse can lawfully marry only when there is no right of appeal against the decree dissolving the marriage or if there is a right of appeal, the time for filing of an appeal has expired or the appeal presented has been dismissed.

The question about an appeal to the Supreme Court has also been considered in a recent decision of this Court in Tejinder Kaur case [(1988) 2 SCC 90 : 1988 SCC (Cri) 313 : AIR 1988 SC 839] wherein the observations made in Chandra Mohini case [AIR 1967 SC 581 : (1967) 1 SCR 864] have been quoted and it is held that : (SCC pp. 94-95, para 9) "In view of this, it was incumbent on the respondent to have enquired about the fate of the appeal. At any rate, the High Court having dismissed the appeal

on 16-7-1986 the petitioner could have presented a special leave petition within ninety days therefrom under Article 133(c) of the Limitation Act, 1963 i.e. till 14-9-1986. Till that period was over, it was not lawful for either party to marry again as provided by Section 15. It was incumbent on the respondent, as observed in Lila Gupta case [ILR (1969) 1 All 92] to have apprised himself as to whether the appeal in the High Court was still pending; and if not, whether the period for filing a special leave petition to this Court had expired. We must accordingly overrule the preliminary objection following the views expressed in Chandra Mohini [AIR 1967 SC 581 : (1967) 1 SCR 864] and Lila Gupta [ILR (1969) 1 All 92] cases. We wish to add that in the subsequent decision in Lila Gupta [ILR (1969) 1 All 92] the court while dealing with the effect of deletion of the proviso observed : (SCC p. 269, para 12) The net result is that now since the amendment parties whose marriage is dissolved by a decree of divorce can contract marriage soon thereafter provided of course the period of appeal has expired."

This court adverted to the word of caution administered by Wanchoo, J. in Chandra Mohini case [AIR 1967 SC 581 : (1967) 1 SCR 864] and reiterated : (SCC p. 269, para 12) "... even though it may not have been unlawful for the husband to have marriage immediately after the High Court's decree for no appeal as of right lies from the decree of the High Court to this Court, still it was for the respondent to make sure whether an application for special leave had been filed in this Court and he could not, by marrying immediately after the High Court's decree, deprive the wife of the chance of presenting a special leave petition to this Court. If a person does so, he takes a risk and could not ask the court to revoke the special leave on that ground."

It is no doubt true that in these two decisions, this Court was considering the impact of an appeal against a decree under Section 13 itself and not a decree under Section 11 or 12 but as indicated earlier if the impact of the phraseology "right of appeal" occurring in Section 15 is to be examined in the light of language of Section 28 as discussed earlier there will be no difference in respect of the right of appeal whether the decree is under Section 11, 12 or 13.

9. The decisions of the High Court on which reliance is placed by courts below and the learned counsel for the respondent are : (i) Mohanmurari [AIR 1965 MP 194 : 1965 MPLJ 321] , (ii) Jamboo Prasad Jain [AIR 1979 All 260 : 1979 Mat LR 320] and (iii) Pramod Sharma [AIR 1976 Punj 355 : 1977 Punj LR 447] . In none of these decisions the impact of the right of appeal occurring in Section 15 in view of the language of Section 28 where the right of appeal is conferred, has been considered. In our opinion, therefore the view taken by the High Court is not correct. What does Section 15 mean when it uses the phrase "has been dissolved by decree of divorce"? It only means where the relationship of marriage has been brought to an end by intervention of court by a decree, this decree will include a decree under Section 11, 12 or 13 and therefore the view taken by all the courts below is not sustainable. The contention of the learned counsel for the appellant has to be accepted so far as this question is concerned."

5. Today, learned counsel for the appellant states that the respondent is no more.

6. In view of the above, the proceeding seeking declaration of marriage between the parties void has abated.

7. Accordingly, the appeal has abated and is consigned to records.

Order Date :- 14.11.2024

SA

(Donadi Ramesh, J.) (S.D. Singh, J.)